

remedies.⁸ At least as much is required to justify a trial court in using its discretion under the Federal Rules to allow claims of equitable origins to be tried ahead of legal ones, since this has the same effect as an equitable injunction of the legal claims. And it is immaterial, in judging if that discretion is properly employed, that before the Federal Rules and the Declaratory Judgment Act were passed, courts of equity, exercising a jurisdiction separate from courts of law, were, in some cases, allowed to enjoin subsequent legal actions between the same parties involving the same controversy. This was because the subsequent legal action, though providing an opportunity to try the case to a jury, might not protect the right of the equity plaintiff to a fair and orderly adjudication of the controversy. See, *e. g.*, *New York Life Ins. Co. v. Seymour*, 45 F. 2d 47. Under such circumstances the legal remedy could quite naturally be deemed inadequate. Inadequacy of remedy and irreparable harm are practical terms, however. As such their existence today must be determined, not by precedents decided under discarded procedures, but in the light of the remedies now made available by the Declaratory Judgment Act and the Federal Rules.⁹

⁸ *E. g.*, *Pennsylvania v. Wheeling & Belmont Bridge Co.*, 13 How. 518, 561; *Parker v. Winnipiseogee Lake Cotton & Woollen Co.*, 2 Black 545, 551; *Enelow v. New York Life Ins. Co.*, 293 U. S. 379.

⁹ See, *e. g.*, Cook, *Cases on Equity* (4th ed.), 18; 4 Pomeroy, *Equity Jurisprudence* (5th ed.), § 1370; 5 Moore, *Federal Practice*, 154-158; Morris, *Jury Trial Under the Federal Fusion of Law and Equity*, 20 Tex. L. Rev. 427, 441-443. Cf. *Maryland Theater Corp. v. Brennan*, 180 Md. 377, 389, 24 A. 2d 911; *Hasselbring v. Koepke*, 263 Mich. 466, 248 N. W. 869. But cf. 1 Pomeroy, *Equity Jurisprudence* (5th ed.), §§ 182, 183. Significantly the Court of Appeals itself relied on the procedural changes brought about by the Federal Rules when it found the plea for equitable relief valid, for it did so by relying on *Conley v. Gibson*, 355 U. S. 41, which emphasized the liberal construction policies of the Rules.